

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CRIMINAL MISCELLANEOUS JURISIDITION)

**Present:**

**Mr. Justice S M Kuddus Zaman**

**And**

**Mr. Justice Md. Ali Reza**

**Criminal Miscellaneous Case No. 67438 of 2023**

Mohiuddin Md. Masudur Rahman Talukder

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Mohiuddin Ahmed, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. S.M. Shahjahan, Advocate

.....For the Opposite Party No. 2-6

**Heard and Judgment on 17.01.2024**

**S M Kuddus Zaman, J:**

On an application under section 526 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the Nari-O-Shishu Tribunal Case No. 169 of 2023 arising out of Panchagarh Sadar Police Station Case No. 11 dated 10.01.2023 corresponding to G.R. Case No. 11 of 2023 under sections 11(Ga)/30 of Nari-O-Shishu Nirjatan Daman Ain, 2000, now pending in the Court of Nari-O-Shishu Nirjatan Daman Tribunal, Panchagarh should not be transferred to the Court of Nari-

O-Shishu Nirjatan Daman Tribunal No. 6, Dhaka to any other session Court of competent jurisdiction in Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner namely Mohiuddin Md. Masudur Rahman Talukder a witness of Panchagarh Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023 under sections 11(Ga)/30 of the Nari-O-Shishu Nirjatan Protirod Ain, 2000 has sought transfer of above case from Nari-O-Shishu Nirjatan Daman Tribunal Panchagarh to any other competent Tribunal for expeditious trial. It has been alleged that the accused husband of above case has murdered victim of above case in Dhaka and the accused is in custody in Dhaka in connection of the latter case which is causing hindrance in the expeditious trial of this case. The petitioner is a witness to both above cases. It will be convenient for both parties and witness of above case if both above cases are tried simultaneously by a competent Tribunal at Dhaka.

Mr. Mohiuddin Ahmed, learned Advocate for the petitioner submits that now deceased Fatema Nasrin as informant lodged G.R. Case No.11 of 2023 under sections 11(Ga)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 against opposite party Nos. 2-6 and above case is pending for framing of charge in the Nari-O-Shishu Nirjatan Daman Tribunal, Panchagarh as Nari-O-Shishu Tribunal Case No. 169 of 2023. Above informant filed above case in the Court of Magistrate, Panchagarh while she was living in the village house of her husband accused Mirza Shakhawat Hossain at Panchagarh. After above occurrence now deceased victim Fatema Nasrin shifted to the Dhaka house of her husband accused Mirza Shakhawat Hossain at

Mohammadpur where she was murdered brutally by her husband on 18.08.2023. Due to above murder of Fatema Nasrin Nari-O-Shishu Tribunal Case No. 169 of 2023 has been instituted and the same is fixed for examination of further witnesses.

The petitioner is a witness in both above cases being Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023, Panchagarh and Nari-O-Shishu Nirjatan Daman Tribunal Case No. 148 of 2023 at Dhaka. He further submits that the transfer of Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023 from Panchagarh to any competent Tribunal will be convenient for the witnesses and the accused person and expeditious trial will be ensured.

Mr. S.M. Shahjahan, learned Advocate for the opposite party Nos. 2-6 submits that section 177 of the Code of Criminal Procedure has determined the place of trial of a case and since the alleged offence punishable under section 11(Ga) of Nari-O-Shishu Nirjatan Daman Ain occurred in Panchagarh, the same should be tried in Panchagarh. The learned Advocate opposes this petition for transfer of above case to any Tribunal in Dhaka.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It is not disputed that now deceased Fatema Nasrin was the victim of both the cases being Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023 pending for hearing in the Nari-O-Shishu Nirjatan Daman Tribunal, Panchagarh and Nari-O-Shishu Nirjatan Daman Tribunal Case No. 148 of 2023 pending for trial in Nari-O-Shishu Nirjatan Daman Tribunal No. 6, Dhaka. The case pending at Panchagarh tribunal was filed by above victim Fatema

Nasrin as complainant and the subsequent case was filed under section 11(Ka) of the Nari-O-Shishu Nirjatan Daman Ain, after above complainant was murdered and now pending in a similar Tribunal at Dhaka.

The petitioner before us is the brother of victim Fatema Nasrin and he is a witness in both above cases. A case under section 11(Ka) of the Nari-O-Shishu Nirjatan Daman Ain is more grievous in nature than a case under section 11(Ga) of above Ain. The victim, accused and some witnesses are identical in both above cases. Section 526(1) clause D of the Code of Criminal Procedure provides for transfer of a case the ground of general convenience of the parties or witnesses.

On consideration of above materials on record, we hold that the general convenient of the parties and witnesses will be ensured and the ends of justice will be made if Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023 pending in the Nari-O-Shishu Nirjatan Daman Tribunal, Panchagarh is transferred to Nari-O-Shishu Nirjatan Daman Tribunal No. 6, Dhaka for simultaneous trial of the same with Nari-O-Shishu Nirjatan Daman Tribunal Case No. 148 of 2023.

In above view of the materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute

In the result, the Rule is made absolute.

Let the Nari-O-Shishu Nirjatan Daman Tribunal Case No. 169 of 2023 be withdrawn from the Nari-O-Shishu Nirjatan Daman Tribunal, Panchagarh and transferred to the Nari-O-Shishu Nirjatan Daman Tribunal No. 6, dhaka for simultaneous trial of above case

with Nari-O-Shishu Nirjatan Daman Tribunal Case No. 148 of 2023 of above tribunal.

Communicate this judgment and order to the Court concerned at once.

**Md. Ali Reza, J:**

I agree.

Naher, B.O.